

The Kolkata Gazette



सत्यमेव जयते

Extraordinary
Published by Authority

PHALGUNA 22]

MONDAY, MARCH 13, 2023

[SAKA 1944

PART I—Orders and Notifications by the Governor of West Bengal, the High Court, Government Treasury, etc.

WEST BENGAL ELECTRICITY REGULATORY COMMISSION

NOTIFICATION

No. 76/WBERC

Dated: 13.03.2023

In exercise of the powers conferred by sub-section (1) and (2) of section 181 read with section 61 of the Electricity Act, 2003 (36 of 2003) and all powers enabling it on that behalf, the West Bengal Electricity Regulatory Commission (WBERC) hereby makes the following regulations to amend the West Bengal Electricity Regulatory Commission (Terms and Conditions of Tariff) Regulations, 2011 along with subsequent amendments vide Notification no. 49/WBERC dated 27.08.2012 (hereinafter referred to as "First Amendment"), Notification no. 54/WBERC dated 30.07.2013 (hereinafter referred to as "Second Amendment") and Notification no. 65/WBERC dated 21.01.2020 (hereinafter referred to as "Third Amendment"), collectively termed as Principal Regulations.

1. Short Title and Commencement:

- (i) These Regulations may be called the West Bengal Electricity Regulatory Commission (Terms and Conditions of Tariff) (Fourth Amendment) Regulations, 2023. These shall come into force on and from 01.04.2023.
- (ii) These Regulations will be published in the Official Gazette.
- (iii) Application received for Aggregate Revenue Requirement (ARR), Annual Performance Review (APR), Fuel Cost Adjustments (FCA), Fuel and Power Purchase Cost Adjustment (FPPCA) for the period prior to 01.04.2023 shall be governed by the regulations existing prior to the present Amendment.

2. After clause (xxvi) of regulation 1.2.1 of the Principal Regulations, the following clause shall be inserted:

"(xxvi)(A) 'Change in law' shall have the same meaning as defined under CERC Tariff Regulations;"

3. Clause (iv) of regulation 1.2.1 of the Principal Regulations is substituted as follows:

"(iv) 'Force Majeure' shall have the same meaning as defined under CERC Tariff Regulations;"

4. Clause (lxxix) of regulation 1.2.1 of the Principal Regulations is substituted as follows:

"(lxxix) 'Plant Load Factor' in relation to thermal generating station or unit thereof for a given period means the total sent out energy corresponding to scheduled generation during the period, expressed as a percentage of sent out

energy corresponding to installed capacity in that period and shall be computed in accordance with the following formula :

$$PLF = 10000 \times \frac{\sum_{i=1}^N SG_i}{\{N \times IC \times (100 - AUX_n)\}} \%$$

Where,

IC = Installed Capacity of the generating station or unit in MW,

SG_i = Scheduled Generation in MW for the ith time block of the period,

N = Number of time blocks during the period,

AUX_n = Normative auxiliary energy consumption as a percentage of gross energy generation.

Provided further that, where a generating station has contracted a part of its installed capacity with the beneficiary, PLF shall be computed based on such contracted capacity in place of the installed capacity."

5. After clause (cxv) of regulation 1.2.1 of the Principal Regulations, the following clause shall be inserted :

"(cxv)(A) 'Useful Life' in relation to component of a unit of a generating station, transmission system, distribution system and communication system from the date of commercial operation shall be as specified in Annexure A-II."

6. Regulation 2.5.5 of the Principal Regulations is substituted as follows :

"2.5.5 Controllable and Uncontrollable Factors :

2.5.5.1 The "uncontrollable factors" shall comprise of the following factors which were beyond the control of, and could not be mitigated by the applicant :

- (a) Force Majeure events;
- (b) Change in law;
- (c) Taxes, Duties and statutory levies;
- (d) Variation in sales in terms of quantity as well as consumer mix;
- (e) Variation in fuel cost of generating station on account of variation in fuel mix and price of primary and/or secondary fuel;
- (f) Variation in rail and / or ocean freight rates for fuel transportation of generating station;
- (g) Variation in the cost of power purchase from approved sources due to variation in the rate of power purchase, subject to clauses in the power purchase agreement or arrangement approved by the Commission;
- (h) Variation in Transmission charge to the extent of admitted power purchase;
- (i) Variations in system operation charges viz. ERPC charge, ERLDC charge, SLDC charge;
- (j) Variation in interest rate in long-term loans; and
- (k) Variation in Employee cost due to revision of pay & wages, effect of Pay Commission, etc. However total number of employees shall be limited to the norms specified in Schedule-9A of these Regulations.

2.5.5.2 The "Controllable Factors" shall include, but shall not be limited to the followings :

- (a) Variation in Transmission and Distribution Losses;
- (b) Variation in operating norms;
- (c) Variation in amount of interest on working capital;
- (d) Variation in operation & maintenance expenses, except those attributable to directions of the Commission.

2.5.5.3. Mechanism for pass through of gains or losses on account of uncontrollable factors:

The approved gain or loss to the Generating Company or Licensee on account of uncontrollable factors shall be passed through, subject to prudent analysis, as an adjustment in the tariff of the Generating Company or Licensee, as specified in these Regulations and as may be determined in the Order of the Commission passed under these Regulations:

Provided that, the gain or loss on account of fuel cost shall be recovered on monthly basis by Generating company through Monthly Fuel Cost Adjustment (MFCA) formula specified under these Regulations:

Provided further that, the gain or loss on account of fuel and power purchase cost shall be recovered on monthly basis by Distribution Licensee through Monthly Variable Cost Adjustment (MVCA) formula specified under these Regulations.

2.5.5.4 Mechanism for sharing of gains or losses on account of controllable factors

(i) The approved gain to the Generating Company or Licensee on account of controllable factors shall be dealt with in the following manner:

- (a) One-third of the amount of such gain shall be passed on to the consumer(s)/ beneficiary(ies); and
- (b) The balance two-third amount of such gain shall be retained by the Generating Company or the Licensee.

(ii) The approved loss to the Generating Company or Licensee on account of controllable factors be dealt with in the following manner:

- (a) One-third of the amount of such loss may be passed on to the consumer(s)/ beneficiary(ies); and
- (b) The balance two-third amount of loss shall be absorbed by the Generating Company or Licensee."

7. Sub-clause (c) of **clause (i)** of regulation 2.6.5 of the Principal Regulations is substituted as follows:

"(c) extent of gain/ loss sharing specified in regulations 2.5.5.3 and 2.5.5.4 of these Regulations for the year under APR for the parameters which are not covered under FPPCA after taking into consideration of actual performance."

8. Sub-clause (c) of **clause (ii)** of regulation 2.6.5 of the Principal Regulations is substituted as follows:

"(c) extent of gain/loss sharing specified in regulations 2.5.5.3 and 2.5.5.4 of these Regulations for the year under APR for the parameters which are not covered under FPPCA after taking into consideration of actual performance."

9. After clause (iii) of regulation 2.6.6 of the Principal Regulations, the following regulation shall be inserted:

"(iv) Carrying cost shall be allowed on the amount of Revenue Gap or Revenue Surplus, as determined in APR and FPPCA order, for the period from the middle of the financial year in which such revenue gap / surplus had occurred upto the middle of the financial year in which the recovery has been allowed, calculated with simple interest at a rate equal to the MCLR or any replacement thereof by SBI from time to time being in effect applicable for one-year period, as prevalent on 1st April of the relevant years plus 250 basis point:

Provided that, where recovery for revenue gap/surplus has been allowed through number of installments or spread over a specific period, such timeline shall be considered during computation of the carrying cost"

10. Regulation 2.6.10 of the Principal Regulations stands deleted.

11. After regulation 2.8.5.3 of the Principal Regulations the following regulation shall be inserted :

“2.8.5.3(A) No interest during construction for any unit of a generating station shall be allowed to be capitalized for the period beyond the scheduled date of commercial operation (COD) as set out in the contract agreement of boiler and/or turbine-generator or the COD as per norms under Schedule-9C, whichever is earlier. However, if Commission considers it appropriate, then it can allow additional capitalization that arises out of force majeure events or extenuating circumstances. No interest during construction for any unit of a generating station whose order for construction has been placed before 15.10.2007 shall be allowed to be capitalized for the period beyond the scheduled date of commercial operation (COD) as set out in the contract agreement of boiler and/or turbine-generator or the COD as per norms under Schedule-9C, whichever is later. For common assets covering more than one unit of the generating station, it will be considered on the basis of proportional allocation to the installed capacity of the unit concerned with reference to the total installed capacity of the project under consideration. Such interest during construction, which has been disallowed to be capitalized, shall also not be allowed to be recovered subsequently through tariff in any form whatsoever.”

12. Regulation 2.8.6.1 to 2.8.6.3 of the Principal Regulations is substituted as follows :

“2.8.6 Operating Norms and standard of Operating Performance :

2.8.6.1 The operating norms of different operational parameters pertaining to the year 2023 - 24 to 2025-26, on the basis of which the annual revenue requirement of any generating station or licensee will be determined, have been laid down in Schedule-9A of these Regulations. For subsequent years the Commission shall notify the norms through suitable amendment of schedule-9A, as and when required :

Provided that, operating norms for the generating stations which are under constructions and not covered under Schedule-9A will be determined by the Commission considering the principles specified under schedule-9D of these Regulations :

Provided further that, in case of any Renovation & Modernization or Life Extension Programme of any existing generating station, the operating norms under Schedule -9A will be modified on the basis of submitted document(s) at the stage of investment approval.

2.8.6.2 Any gain or loss on account of variation in actual performance of operating parameters of a generating station or licensee with respect to the norms admitted in the tariff order shall be shared with the beneficiary in terms of regulations 2.5.5.3 and 2.5.5.4 of these Regulations :

Provided that sharing of gain or loss on each operating parameter of a generating station or licensee shall be assessed independently and separately :

Provided further that sharing of gain or loss shall be applicable for a generating station of a generating company or licensee only for that part of the installed capacity which is exclusively dedicated for supply of electricity to any consumer or licensee under the purview of the Commission.

2.8.6.3 In addition to the gains shared for better performance, the generating company or licensee shall also be entitled for incentives for improved performance according to the principles specified in Schedule-10 of these Regulations :

Provided that, incentives as per schedule-10 shall only be applicable for a generating station of a generating company or licensee for that part of installed capacity which is exclusively dedicated through PPA for supply of electricity to any licensee under the purview of the Commission :

Provided that, for generating stations of generating company or licensee, incentives under schedule-10 are applicable subject to fulfilling the conditions specified under regulation 6.4.2 of these Regulations."

13. Regulations 2.8.6.4, 2.8.6.5, 2.8.6.6, 2.8.6.8, 2.8.6.9, 2.8.6.10, 2.8.6.11 and 2.8.6.12 stand deleted.
14. After the first proviso to regulation 2.11.1 of the Principal Regulations, the following proviso shall be inserted :
 "Provided further that, notwithstanding anything to the contrary contained elsewhere in this regulations, investment approval of the Commission shall not be required where the project is entirely funded by the Government through grants."
15. Formula of determining "Contract Demand" specified in regulation 4.15 of the Principal Regulation is substituted with the following formula :

$$\text{"Contract Demand"} = \frac{\text{Annual Consumption in Unit}}{\text{No. of days in year} \times 24 \times \text{LF}}$$
 Where LF is the annual average load factor of same category of consumers"
16. After sub-clause(f) of clause (iii) of regulation 5.1 of the Principal Regulations following sub-clause shall be inserted :
 "(g) Asset created out of any contribution made by consumers/users or through any grant shall not be considered for computation of loan capital, equity capital and depreciation under these Regulations."
17. Clause (ix) and (x) of regulation 5.1 of the Principal Regulations stand deleted.
18. Clause (ii) of regulation 5.2.7 of the Principal Regulations is substituted as follows :
 "(ii) Any expenditure incurred on replacement, renovation and modernization or extension of life of old assets shall be considered after writing off the net value of such replaced asset from the original capital cost, and shall be computed as follows :

$$\text{Net Value of Replaced Assets} = \text{OCRA} - \text{AD};$$

Where;

OCRA = Original Capital Cost of Replaced Assets;

AD = Accumulated depreciation including AAD, if any, pertaining to the Replaced Assets

Provided that in case the original capital cost of the replaced asset is not available for reasons beyond the control of utility, it shall be considered by the Commission based on information and documents acceptable to the Commission :

Provided further that the amount of insurance proceeds received, if any, towards damage to any asset requiring its replacement shall be first adjusted towards outstanding actual or normative loan; and the balance amount, if any, shall be utilised to reduce the capital cost of such replaced asset, and any further balance amount shall be considered as Non-Tariff Income."

19. After regulation 5.2.8 of the Principal Regulations, the following regulation shall be inserted :
 "5.2.9 In case of de-capitalisation of assets of generating company or licensee, as the case may be, the original cost of such asset as on the date of decapitalization shall be deducted from the value of gross fixed asset. Corresponding loan as well as equity shall be deducted from outstanding loan and the equity respectively in the year such de-capitalisation takes place with corresponding adjustments in cumulative depreciation and cumulative repayment of loan, duly taking into consideration the year in which it was capitalised."

20. Regulation 5.4.4 of the Principal Regulations is substituted as follows :

“5.4.4 The debt and equity amount arrived at in accordance with the instant regulations shall be used for calculating interest on loan, and return on equity,”

21. Regulation 5.5 of the Principal Regulations stands deleted.

22. Regulation 5.6.1.1 and 5.6.1.2 of the Principal Regulations is substituted as follows :

“5.6.1.1 Return on equity for generating station of a Generating Company or a Distribution Licensee and transmission assets of a Transmission Licensee shall be computed on the equity capital determined in accordance with these Regulations at the rate of 14.00% per annum for all assets commissioned on and from 01.04.2024. For assets commissioned prior to 01.04.2024 return on equity shall continue at 15.50%. Such return on equity shall be calculated on the post-tax basis (without any penalty and interest levied for delayed payment of income tax) and actual income tax liability related to the core business only will be allowed separately on actual payment basis subject to final assessment duly certified by the statutory/tax auditor :

Provided that above normative rate of return is a ceiling rate and in case the Generating Company or Licensee claims Return on Equity at a rate lower than the normative rate specified above for any particular year, then such claim for lower Return on Equity shall be unconditional :

Provided further that rate of return of a new project shall be reduced by 1% for such period as may be decided by the Commission, if generating station or transmission system is found to be declared under commercial operation without commissioning of any of the Restricted Governor Mode Operation (RGMO) or Free Governor Mode Operation (FGMO), data telemetry, communication system upto load despatch center or protection system based on the report submitted by SLDC. However, this does not restrict the Commission to take any penal measure against the utility defaulting more than one year.

5.6.1.2 Return on equity for a distribution licensee for its distribution assets put in commercial operation on and from 01.04.2024 shall be computed on the equity capital determined in accordance with these Regulations at an applicable rate of 15.50%. Return on equity for distribution assets prior to 01.04.2024 shall continue at 16.50%. Such return on equity shall be calculated on the post-tax basis (without any penalty and interest levied for delayed payment of income tax) and actual income tax liability related to the core business only will be allowed separately on actual payment basis subject to final assessment duly certified by the statutory/tax auditor :

Provided that above normative rate of return is a ceiling rate and in case the Licensee claims Return on Equity at a rate lower than the normative rate specified above for any particular year, then such claim for lower Return on Equity shall be unconditional.”

23. Regulation 5.6.1.4 of the Principal Regulations stands deleted.

24. Regulation 5.6.2 of the Principal Regulations is substituted as follows :

“5.6.2 Depreciation :

The Generating Company and/or Licensee shall be permitted to recover depreciation on the value of fixed assets used in their respective businesses, computed in the following manner :

- (i) The approved original cost of the fixed asset, including approved additional capitalization, if any, shall be the value base for calculation of depreciation :

Provided that where capitalization of part or full assets has been done but the final approval of the project under regulation 2.8.5 is yet to be done, depreciation will be allowed upto 95% of the capitalized value as reflected in the audited accounts, limited to a ceiling of investment approval. After final project cost approval depreciation will be trued-up accordingly :

Provided further that for the small assets, which are not covered under the approval mechanism specified in regulation 2.8.5 of these Regulations, the original cost of assets as reflected in the audited accounts of the Generating Company or Licensee shall be considered by the Commission subject to prudent analysis. Generating Company or Licensee shall categorically mention such details in their tariff as well as APR applications :

Provided also that depreciation shall be allowed on the entire capitalised amount after reducing the approved original cost of the retired or replaced or de-capitalised assets.

- (ii) The depreciation shall be calculated annually, based on straight line method at the rates prescribed in the Annexure – A(I) to these Regulations :

Provided that the Generating Company or Licensee shall ensure that once the individual asset is depreciated to the extent of 70%, remaining depreciable value as on 31st March of the year closing shall be spread over the balance useful life of the asset including the extended life, if any, allowed under renovation & modernization :

Provided further that in case a Generating Company or a Licensee is unable to identify individual asset specific depreciation for older assets, then the Generating Company or Licensee may consider assets upto 31st March 2022, or some earlier date, as a block of assets of specific category for the purpose of ensuring that after 70% depreciation has been arrived the balance depreciable value shall be spread over balance useful life. For this purpose, total depreciable value will be considered based on cumulative depreciation and AAD allowed by the Commission and the Generating Company or Licensees have to maintain separate fixed asset register for such old assets :

Provided further that, in case of any life extension programme taken up with approval of the Commission after the cut off date, depreciation on the additional capex incurred and duly capitalised will be charged uniformly over the balance useful life of such assets as extended :

Provided further that, Generating Company or Licensees have to submit a summary of their asset register duly certified by statutory auditor as per the format specified under Annexure-10 along with their tariff as well as APR petition.

- (iii) The salvage value of the asset shall be considered at 10% of the allowable capital cost and depreciation shall be allowed up to a maximum of 90% of the allowable capital cost of the Asset.
- (iv) Freehold land is not a depreciable asset and its cost shall be excluded from the capital cost while computing depreciable value of the assets.
- (v) In case of existing assets, the balance depreciable value as on 1st April shall be worked out by deducting the cumulative depreciation as admitted by the Commission upto 31st March of the previous year, from the gross depreciable value of the assets.
- (vi) Depreciation shall be chargeable from the first year of operation. In case of operation of the asset for part of the year, depreciation shall be charged on prorata basis. However, during tariff determination depreciation for ensuing years shall be computed based on average of opening and closing value of assets.

- (vii) Depreciation shall be re-computed for assets capitalised at the time of Annual Performance Review based on Audited Accounts and documentary evidence of assets capitalised by the Petitioner, subject to the prudent analysis by the Commission."

25. Regulation 5.6.3 of the Principal Regulations stands deleted.

26. Regulation 5.6.4.1 of the Principal Regulations is substituted as follows :

"5.6.4.1 Financing costs comprise of:—

- (i) Interest on loan capital,
- (ii) Interest on working capital"

27. Regulation 5.6.4.2 of the Principal Regulations is substituted as follows :

"5.6.4.2 Interest on and charges relating to capital loan will be allowed by the Commission as under :

- (i) The actual loan and/or normative loan, if any, allowed in terms of regulation 5.4 of these Regulations, for the assets put to use shall be considered as gross normative loan for calculation of interest on loan under these Regulations :

Provided that in case of retirement or replacement or de-capitalisation of assets, the loan capital approved as above shall be reduced to the extent of outstanding loan component of original cost of such assets based on documentary evidence.

- (ii) The normative loan outstanding as on 1st April of any financial year shall be worked out by deducting the cumulative repayment as admitted by the Commission upto 31st march of the previous year from the gross normative loan :

Provided that outstanding loan as on 01.04.2022 shall be considered as admitted loan corresponding to the assets capitalised deducted by cumulative depreciation and AAD approved by the Commission. Petitioner has to furnish details of their claim with the tariff and APR petition separately.

- (iii) The repayment during each year of the control period shall be deemed to be equal to the depreciation allowed for that year.
- (iv) Notwithstanding any moratorium period availed of by generating company or licensee, the normative repayment of loan shall be considered from the first year of commercial operation of the asset.
- (v) The rate of interest shall be the weighted average rate of interest computed on the basis of actual capital loan portfolio at the beginning of each year of the control period, in accordance with terms and conditions of relevant loan agreements, or bonds or non-convertible debentures subject to prudent analysis :

Provided that at the time of Truing-up, the weighted average rate of interest computed on the basis of the actual loan portfolio during the concerned year shall be considered as the rate of interest :

Provided that if no actual loan is outstanding but normative loan is still outstanding, the last available weighted average rate of interest shall be applicable.

- (vi) The interest on loan shall be computed on the normative average loan of the year by applying the weighted average rate of interest :

Provided that at the time of Annual Performance Review, the normative average loan of the concerned year shall be considered on the basis of the actual asset capitalisation approved by the Commission :

Provided further that capital cost funded by consumer contribution, deposit works, grant or capital subsidy shall not be considered for computation of interest on loan.

- (vii) The finance charges incurred for obtaining capital loans from financial institutions and any amount claimed towards foreign exchange rate variation (FERV) for any Year shall be allowed by the Commission at the time of Truing-up, subject to prudent analysis. The Hedging Policy of the company should also be submitted along with the claim on account of FERV.
- (viii) The generating company or licensee, as the case may be, shall provide project-wise and utilization-wise details of all of the pending loans along with its APR petition.
- (ix) The generating company or licensee, as the case may be, shall make every effort to refinance the loan as long as it results in net savings in interest cost. In that event the cost associated with such refinancing shall be eligible to be passed through in tariffs and the net-saving shall be shared in the ratio of 50:50 between the entity and the beneficiaries.

Provided that generating company or the licensee, as the case may be, shall justify the costs associated with such re-financing.”

28. Regulation 5.6.5 of the Principal Regulations is substituted as follows :

“5.6.5 Interest on Working Capital

5.6.5.1. Generation :

(a) In case of coal based generating stations, working capital shall cover :

- (i) Cost of coal towards stock for 10 days for pit head generating stations and 20 days for non-pit-head generating stations for generation corresponding to the normative annual plant availability factor or maximum coal stock storage capacity, whichever is lower;
- (ii) Advance payment for 30 days towards cost of coal for generation corresponding to the normative annual plant availability factor;
- (iii) Cost of secondary fuel oil for two months for generation corresponding to the normative annual plant availability and in case of use of more than one secondary fuel oil, cost of oil stock for main secondary fuel oil;
- (iv) O&M expenses, employee cost and water charges for one month;
- (v) Maintenance spares @ 20% of O&M expenses including water charges; and
- (vi) Receivables equivalent to 45 days of capacity charges and energy charges for sale of electricity computed on the normative annual availability factor and excluding incentives, if any;

Provided that in case of own generating station of any licensee, no amount shall be allowed towards receivables, to the extent of supply of power by the generation business to the distribution business, in computation of working capital in accordance with these Regulations :

Provided that in case of own generating station of any licensee, the working capital requirement shall be further adjusted with the balance amount of cash security deposit, if any, held by the licensee after meeting the working capital requirement of its distribution business :

Provided further that for the purpose of Truing-up, the working capital shall be computed based on the scheduled generation or targeted availability of generating Station, whichever is lower :

Provided also that for the purpose of Truing up, the working capital shall be computed based on the actual average stock of coal or lignite and limestone or normative stock of coal or lignite and limestone of the generating Station, whichever is lower :

Provided also that for the purpose of Truing-up for any year, the working capital requirement shall be re-computed on the basis of the values of revised normative Operation & Maintenance expenses and actual Revenue from sale of electricity excluding incentive, if any, and other components of working capital approved by the Commission in the Truing-up before sharing of gains and losses;

- (b) In case of hydro generating stations and pumped storage projects, working capital shall cover :

- (i) O&M expenses and employee cost for one month
- (ii) Maintenance spares @ 15% of O&M expenses
- (iii) Receivables equivalent to 45 days of Annual Fixed cost, excluding incentive, if any.

Provided that in case of own generating stations of any licensee, no amount shall be allowed towards receivables, to the extent of supply of power by the Generation Business to the Distribution Business, in the computation of working capital in accordance with these Regulations :

Provided that in case of own generating station of any licensee, the working capital requirement shall be further adjusted with the balance amount of cash security deposit, if any, held with the licensee after meeting the working capital requirement of its distribution business :

Provided further that for the purpose of truing up for any year, the working capital requirement shall be re-calculated on the basis of the values of components of working capital approved by the Commission in the truing up before sharing of gains and losses.

- (c) Interest on working capital shall be allowed at a rate equal to the MCLR or any redefined term thereof by SBI from time to time being in effect applicable for one-year period, as prevalent on 1st April of the financial year in which the Petition is filed plus 250 basis points :

Provided that for the purpose of truing up for any year, interest on working capital shall be allowed at a rate equal to the MCLR or any redefined term thereof by SBI from time to time being in effect applicable for one-year period, as on 1st April of the respective financial year plus 250 basis points.

5.6.5.2. Transmission :

- (a) The working capital requirement of the Transmission Licensee shall cover :

- (i) O&M expenses and employee cost for one month;
- (ii) Maintenance spares @ 15% of the O&M expense;
- (iii) Receivables equivalent to 45 days transmission charge computed on target availability and excluding incentive, if any.

Provided that for the purpose of truing up for any year, the working capital requirement shall be re-computed on the basis of the values of components of working capital approved by the Commission in the truing up before sharing of gains and losses.

- (b) Interest on working capital shall be allowed at a rate equal to the MCLR or any redefined term thereof by SBI from time to time being in effect applicable for one-year period, as prevalent on 1st April of the financial year in which the Petition is filed plus 250 basis points :

Provided that at the time of truing up for any year, interest on working capital shall be allowed at a rate equal to the MCLR or any redefined term thereof by SBI from time to time being in effect applicable for one-year period, as on 1st April of the respective financial year plus 250 basis points.

5.6.5.3. Distribution :

- (a) The working capital requirement of the Distribution Business shall cover :

- (i) O&M expenses and employee cost for one month;
- (ii) Maintenance spares @ 15% of the O&M expense
- (iii) Receivables equivalent to 45 days of expected revenue from consumers at the prevailing tariff rates

Any cash security deposit from consumers held with distribution licensee shall first be used to meet working capital requirement of its distribution business. Balance amount of cash security deposit, if any, will then be utilized to meet working capital requirement for its own generating station :

Provided that if there is any balance cash security deposit held with licensee after meeting the working capital requirement of its distribution business and own generating station(s), interest on such amount will be considered as non-tariff income and to be shown separately :

Provided further that for the purpose of truing up for any year, the working capital requirement shall be re-computed on the basis of the values of components of working capital approved by the Commission in the truing up before sharing of gains and losses.

- (c) Interest on working capital shall be allowed at a rate equal to the MCLR or any redefined term thereof by SBI from time to time being in effect applicable for one-year period, as prevalent on 1st April of the financial year in which the Petition is filed plus 250 basis points :

Provided that at the time of truing up for any year, interest on working capital shall be allowed at a rate equal to the MCLR or any redefined term thereof by SBI from time to time being in effect applicable for one-year period, as on 1st April of the respective financial year plus 250 basis points.

- (d) In addition to interest on working capital, the licensee shall be allowed interest on cash security deposit taken by it at the rate in terms of the West Bengal Electricity Regulatory Commission (Miscellaneous Provisions) Regulations 2013 on actual basis.”

29. Regulation 5.6.6 of the Principal Regulations stands deleted.

30. Regulation 5.7 of the Principal Regulations is substituted as follows :

“5.7 Operation and maintenance Expenses :

5.7.1 Operation and Maintenance or O&M expenses includes the following

- Repair & Maintenance (“R&M”) Expenses including consumables and related outsourced expenses, if any;
- Administrative and General Expenses including rent, lease charge, legal charge, consultation fees, auditor’s fees, insurance fees, outsourced expense, if any, and any other expenses necessary and incidental to the business of electricity generation, distribution and transmission, except penalty levied under this Act or any other Act;

Provided that, outsourced manpower engaged in regular establishment, shall be covered under Employee expenses in terms of regulation 5.9.1 of these Regulations :

Provided further that all statutory fees including licence and filing fees payable in terms of the Act shall be allowed separately during Annual Performance Review :

Provided further that water charges in respect of generating stations shall not be a part of O&M expense and shall be computed separately :

Provided also that any specific kind of O&M expense for the activities, which do not fall under usual business activity of the generating company or licensee, as the case may be, but have been carried out as per direction of the Commission or Government shall be allowed separately during Annual Performance Review, subject to prudent analysis of such expenses.

5.7.2 Generating station :

5.7.2.1 O&M expenses for generating station shall be computed based on the installed capacity considering the norms specified in Schedule-9A of these Regulations. Any gain /loss on account of O&M expenditure will be shared as per regulation 2.5.5.4 of these Regulations during Annual Performance Review.

5.7.2.2 Water charges for thermal generating stations and statutory fees / charges, excluding any penal charges, payable by the generating stations shall be allowed separately :

Provided that water charges shall be allowed based on water consumption depending upon type of plant and type of cooling water system, subject to prudent analysis. The details regarding the same shall be furnished along with the petition for tariff and FPPCA.

5.7.3 Transmission system :

5.7.3.1 O&M expenses for transmission system shall be computed based on the transmission line length and number of Bays in the sub-station considering the norms specified in Schedule-9A of these Regulations. Any gain /loss on account of O&M expenditure will be shared as per regulation 2.5.5.4 of these Regulations during Annual Performance Review.

5.7.3.2 For the purpose of applying normative O&M expenses under regulation 5.7.3.1 of these Regulations, a 'Bay' shall mean a set of accessories that are required to connect an electrical equipment such as Transmission Line, Bus Section Breakers, Potential Transformers, Power Transformers, Capacitors and Transfer Breaker and the feeders emanating from the bus at sub-Station of Transmission Licensee. Further, the Bays referred to above shall include only the Bays at the Transmission substation and shall exclude any Bays of the Generating Station switchyard whose maintenance is the responsibility of the Generating Company :

Provided that for computing the allowable O&M expenses for any year, 50 per cent of the transmission lines and number of Bays added during the Year shall also be considered :

Provided further that at the time of APR, the allowable O&M expenses for any year shall be based on the norms for O&M expenses specified by the Commission in these Regulations and documentary evidence of assets capitalised by the Petitioner, subject to the prudent analysis by the Commission :

Provided also that the number of Bays considered for allowing O&M expenses shall exclude the unutilized Bays.

5.7.3.3 Any statutory charges and fees payable by the Transmission licensee, except any penal charges are to be allowed separately, subject to prudent check by the Commission. Licensee shall furnish details of such payable statutory charges and/or fees in its petition.

5.7.4 Distribution system :

5.7.4.1 O&M expenses for Distribution Business of a licensee shall comprise of Repair & Maintenance expenses and Administrative & General expenses. Any gain /loss on account of total O&M expenditure will be shared as per regulation 2.5.5.4 of these Regulations during Annual Performance Review.

(i) Repair & Maintenance Expenses

Repair & Maintenance Expenses shall include expenses towards repair and maintenance of line, sub-stations, building, etc. including consumption of spares, as the case may be. Repair & Maintenance expenses shall be computed as a percentage of Gross Fixed Asset (GFA) following the norms specified in Schedule-9A of these Regulations :

Provided that, for computing the allowable Repair & Maintenance expenses for any year, 50 per cent of the Fixed Assets added during the Year shall also be considered :

Provided further that at the time of APR, the allowable Repair & Maintenance expenses for any Year shall be based on the percentage norms specified in the Schedule-9A and the admissible GFA:

Provided also that fixed asset retired/de-capitalised or unutilized/not-in-use shall be deducted for arriving at the applicable GFA for computing the O&M expense. Distribution licensee shall furnish such details along with its petition for tariff and APR.

(ii) Administrative & General Expense

Administrative & General Expense shall include all expenditure incidental to run the distribution business, excluding those are covered under repair & maintenance. A&G expenses for base year shall be computed considering the average of last 5 years, preceding to base year, trued up figures duly normalized after applying hybrid inflation index considering 60% wholesale price index (WPI) and 40% consumer price index (CPI) notified by the Government of India. To compute the A&G expenses for the ensuing years of the control period, derived figure for base year will be escalated by average hybrid index of last 5 years as per the following formula:

$$A\&G_n = A\&G_b \times (1 + HI \text{ inflation}) + \text{Provision}$$

Where:

A&G_n: A&G expense for the nth year

A&G_b: Base A&G expense derived on the basis of the average of last five years trued up A&G expenses, excluding abnormal/one-time A&G expenses, if any, subject to prudent check by the Commission and applying hybrid inflation impact.

HI inflation: Is the average increase in the Hybrid inflation Index for last five years considering 60% of Wholesale Price Index (WPI) and 40% of Consumer Price Index (CPI).

Provision: Cost for initiatives or other one-time expenses as proposed by the Distribution Licensee and approved by the Commission.

Provided that, where trued up value for any of the last 5 years, immediately preceding to base year, are not available, value of A&G_b will be derived from approved ARR of such year. During APR of the ensuing year, the A&G_b value shall be recomputed based on the trued-up value of last 5 years.

5.7.4.2 In addition to the above R&M and A&G expenses, distribution licensee may propose for any specific expenditure under OPEX model through detailed justification and cost benefit analysis in its tariff petition. Such expenditure may be allowed by the Commission based on prudent analysis. During APR, licensee shall also submit details of such expenditure and cost-benefit analysis supported by certificate from the statutory auditor:

Provided that, if such expenditure is planned after issuance of tariff order, licensee shall take approval of such plan from the Commission before incurring such expenditure. Such expenditure, if approved, shall be considered during APR."

31. Clause (1) and (2) of regulation 5.8.6 of the Principal Regulations are substituted as follows:

"(1) Where the generating company or a licensee has the arrangement for supply of coal from the integrated mine(s) allocated to it, for use in one or more of its generating stations as end use, the energy charge component of tariff of the generating station shall be determined based on the input price of coal from such integrated mines determined by the Commission following the principles and methodology specified

by CERC in its regulations. The generating company or the licensee shall file an application for determination of input price of coal or lignite from the integrated mine(s) not later than 60 days from the date of commercial operation of such integrated mine(s) or from the date of notification of these Regulations, whichever is later. The generating company or the licensee shall submit all information and documents in the formats as specified in CERC regulations.

- (2) Till the input price of coal from allocated mine is determined by the Commission, generating company / licensee shall adopt the notified price of Coal India Limited commensurate with the grade of the coal from the integrated mine(s) or the estimated price available in the investment approval, whichever is lower, as the input price of coal for the generating station :

Provided that any over-recovery or under recovery considering revenue earned after date of commercial operation and finalization of input price of coal by the Commission shall be considered separately under the APR petition of the generator/licensee, as the case may be :

Provided further that any revenue earned from supply of coal or lignite prior to the date of commercial operation of the integrated mine(s) shall be applied in adjusting the capital cost of the said integrated mine(s)."

32. Regulation 5.14.3 of the Principal Regulations stands deleted.

33. Clause (iv) of regulation 5.15.1 of the Principal Regulations shall be substituted as follow :

"(iv) Any investment made in creation of new asset in electricity business of the generating company, or licensee out of one-time proceeds accruing to the licensee or generating company from sale of its assets will be treated considering normative debt: equity ratio of 70:30. The book value of the asset sold will be deducted from the asset valuation along with deletion of the equity invested in the sold asset from the equity base. Depreciation as per regulation 5.6.2 will be considered on such assets."

34. Clause (iii) of regulation 5.15.2 of the Principal Regulations stands deleted.

35. The phrase "Advance Against Depreciation" or "AAD" in the Principal Regulations stands deleted.

36. Regulation 5.22 of the Principal Regulations stands deleted.

37. Regulation 5.23 of the Principal Regulations stands deleted.

38. The phrases "Unscheduled Interchange" and "UI" used in the Principal Regulations is redefined with the phrases "Deviation Settlement" and "DS" respectively.

39. Regulations 6.1.2 and 6.1.3 stands deleted.

40. Regulation 6.4.2 of the Principal Regulations is substituted as follows :

"6.4.2 The recovery of capacity charges for all the generating stations of the generating company and licensees shall be against the normative availability certified by SLDC, unless specifically allowed other-wise by the Commission, and computed under regulation 6.11 of these Regulations. The generating station or the ALDC, in case of licensee's generating station, shall submit the availability schedule for each 15 minutes time block to the SLDC for recording and subsequent demonstration of their declared capacity as mentioned in regulation 6.7 of these Regulations. The licensees/ generating companies shall also provide on-line monitoring display arrangement of generation/sent-out of the generating stations along with dedicated voice communication at SLDC to meet the need of regulation 6.7 of these Regulations. For generating stations of licensee, the full capacity charge will be recovered at the targeted availability factor as per Schedule – 9A. It will also be entitled to incentive for better plant load factor as per Schedule – 10. While submitting the availability schedule by the ALDC of any licensee for the generating stations of the licensee to the SLDC, ALDC shall also provide the schedule of injection by those generating stations. For subsequent revision in availability schedule and/or

injection schedule for such generating stations of the licensee, the ALDC of the licensee shall follow the methodology as applicable for generating stations of generating companies to submit such revised schedule to the SLDC:

Provided that capacity charge recovery of the generating stations, that have not yet been covered by on-line monitoring display arrangement at SLDC along with dedicated audio communication, shall be done on the basis of normative PLF as per Schedule - 9A or as per Schedule - 9D of these Regulations and such generating stations shall not be entitled to any incentive under Schedule-10 of these Regulations."

41. Regulation 6.5 of the Principal Regulations is substituted as follows:

"6.5 Deviation settlement charges:

Any variation of actual injection and actual drawal with scheduled injection and scheduled drawal shall be accounted for through Deviation Settlement Charges (DS charges). DS charge shall be determined in accordance with the principles and procedure notified under West Bengal Electricity Regulatory Commission (Deviation Settlement Mechanism and related matters) Regulations, 2021 and /or subsequent amended thereof or any replacement of such regulation in future."

42. For regulation 6.11.4 of the Principal Regulations, the following regulations is substituted:

"6.11.4 The fixed cost of a thermal generating station under ABT shall be computed on annual basis, based on norms specified under these Regulations, and recovered on monthly basis under capacity charge. The total capacity charge payable for a generating station shall be shared by its beneficiaries as per their respective percentage share or allocation in the capacity of the generating station. The capacity charge shall be recovered under two segments of the year, i.e. High Demand Season (period of three months) and Low Demand Season (period of remaining nine months), and within each season in two parts viz., Capacity Charge for Peak Hours of the month and Capacity Charge for Off-Peak Hours of the month as follows:

Capacity Charge for the Year (CCy) = Sum of Capacity Charge for three months of High Demand Season + Sum of Capacity Charge for nine months of Low Demand Season.

- (i) The Capacity Charge payable to a thermal generating station for a calendar month shall be calculated in accordance with the following formulae:

Capacity Charge for the Month (CCm) = Capacity Charge for Peak Hours of the Month (CCp) + Capacity Charge for Off-Peak Hours of the Month (CCop).

Where,

High Demand Season:

$$CC_{p1} = (0.20 \times AFC) \times (1/12) \times (PAFM_{p1} / NPAF) \text{ subject to ceiling of } (0.20 \times AFC) \times (1/12)$$

$$CC_{p2} = (0.20 \times AFC) \times (1/6) \times (PAFM_{p2} / NPAF) \text{ subject to ceiling of } \{(0.20 \times AFC) \times (1/6) - CC_{p1}\}$$

$$CC_{p3} = (0.20 \times AFC) \times (1/4) \times (PAFM_{p3} / NPAF) \text{ subject to ceiling of } \{(0.20 \times AFC) \times (1/4) - (CC_{p1} + CC_{p2})\}$$

$$CC_{op1} = (0.80 \times AFC) \times (1/12) \times (PAFM_{op1} / NPAF) \text{ subject to ceiling of } (0.80 \times AFC) \times (1/12)$$

$$CC_{op2} = (0.80 \times AFC) \times (1/6) \times (PAFM_{op2} / NPAF) \text{ subject to ceiling of } \{(0.80 \times AFC) \times (1/6) - CC_{op1}\}$$

$$CC_{op3} = (0.80 \times AFC) \times (1/4) \times (PAFM_{op3} / NPAF) \text{ subject to ceiling of } \{(0.80 \times AFC) \times (1/4) - (CC_{op1} + CC_{op2})\}$$

Low Demand Season:

$$CC_{p1} = (0.20 \times AFC) \times (1/12) \times (PAFM_{p1} / NAPAF) \text{ subject to ceiling of } (0.20 \times AFC) \times (1/12)$$

$$CC_{p2} = (0.20 \times AFC) \times (1/6) \times (PAFM_{p2} / NAPAF) \text{ subject to ceiling of } \{(0.20 \times AFC) \times (1/6) - CC_{p1}\}$$

$$CC_{p3} = (0.20 \times AFC) \times (1/4) \times (PAFM_{p3} / NAPAF) \text{ subject to ceiling of } \{(0.20 \times AFC) \times (1/4) - (CC_{p1} + CC_{p2})\}$$

$$CC_{p4} = (0.20 \times AFC) \times (1/3) \times (PAFM_{p4} / NAPAF) \text{ subject to ceiling of } \{(0.20 \times AFC) \times (1/3) - (CC_{p1} + CC_{p2} + CC_{p3})\}$$

$$CC_{p5} = (0.20 \times AFC) \times (5/12) \times (PAFM_{p5} / NAPAF) \text{ subject to ceiling of } \{(0.20 \times AFC) \times (5/12) - (CC_{p1} + CC_{p2} + CC_{p3} + CC_{p4})\}$$

$$CC_{p6} = (0.20 \times AFC) \times (1/2) \times (PAFM_{p6} / NAPAF) \text{ subject to ceiling of } \{(0.20 \times AFC) \times (1/2) - (CC_{p1} + CC_{p2} + CC_{p3} + CC_{p4} + CC_{p5})\}$$

$$CC_{p7} = (0.20 \times AFC) \times (7/12) \times (PAFM_{p7} / NAPAF) \text{ subject to ceiling of } \{(0.20 \times AFC) \times (7/12) - (CC_{p1} + CC_{p2} + CC_{p3} + CC_{p4} + CC_{p5} + CC_{p6})\}$$

$$CC_{p8} = (0.20 \times AFC) \times (2/3) \times (PAFM_{p8} / NAPAF) \text{ subject to ceiling of } \{(0.20 \times AFC) \times (2/3) - (CC_{p1} + CC_{p2} + CC_{p3} + CC_{p4} + CC_{p5} + CC_{p6} + CC_{p7})\}$$

$$CC_{p9} = (0.20 \times AFC) \times (3/4) \times (PAFM_{p9} / NAPAF) \text{ subject to ceiling of } \{(0.20 \times AFC) \times (3/4) - (CC_{p1} + CC_{p2} + CC_{p3} + CC_{p4} + CC_{p5} + CC_{p6} + CC_{p7} + CC_{p8})\}$$

$$CC_{op1} = (0.80 \times AFC) \times (1/12) \times (PAFM_{op1} / NAPAF) \text{ subject to ceiling of } (0.80 \times AFC) \times (1/12)$$

$$CC_{op2} = (0.80 \times AFC) \times (1/6) \times (PAFM_{op2} / NAPAF) \text{ subject to ceiling of } \{(0.80 \times AFC) \times (1/6) - CC_{op1}\}$$

$$CC_{op3} = (0.80 \times AFC) \times (1/4) \times (PAFM_{op3} / NAPAF) \text{ subject to ceiling of } \{(0.80 \times AFC) \times (1/4) - (CC_{op1} + CC_{op2})\}$$

$$CC_{op4} = (0.80 \times AFC) \times (1/3) \times (PAFM_{op4} / NAPAF) \text{ subject to ceiling of } \{(0.80 \times AFC) \times (1/3) - (CC_{op1} + CC_{op2} + CC_{op3})\}$$

$$CC_{op5} = (0.80 \times AFC) \times (5/12) \times (PAFM_{op5} / NAPAF) \text{ subject to ceiling of } \{(0.80 \times AFC) \times (5/12) - (CC_{op1} + CC_{op2} + CC_{op3} + CC_{op4})\}$$

$$CC_{op6} = (0.80 \times AFC) \times (1/2) \times (PAFM_{op6} / NAPAF) \text{ subject to ceiling of } \{(0.80 \times AFC) \times (1/2) - (CC_{op1} + CC_{op2} + CC_{op3} + CC_{op4} + CC_{op5})\}$$

$$CC_{op7} = (0.80 \times AFC) \times (7/12) \times (PAFM_{op7} / NAPAF) \text{ subject to ceiling of } \{(0.80 \times AFC) \times (7/12) - (CC_{op1} + CC_{op2} + CC_{op3} + CC_{op4} + CC_{op5} + CC_{op6})\}$$

$$CC_{op8} = (0.80 \times AFC) \times (2/3) \times (PAFM_{op8} / NAPAF) \text{ subject to ceiling of } \{(0.80 \times AFC) \times (2/3) - (CC_{op1} + CC_{op2} + CC_{op3} + CC_{op4} + CC_{op5} + CC_{op6} + CC_{op7})\}$$

$$CC_{op9} = (0.80 \times AFC) \times (3/4) \times (PAFM_{op9} / NAPAF) \text{ subject to ceiling of } \{(0.80 \times AFC) \times (3/4) - (CC_{op1} + CC_{op2} + CC_{op3} + CC_{op4} + CC_{op5} + CC_{op6} + CC_{op7} + CC_{op8})\}$$

Provided that in case of generating station or unit thereof under shutdown due to Renovation and Modernisation, the generating company shall be allowed to recover employee expenses and interest on loan only.

Where,

CCm = Capacity Charge for the Month;

- CCp = Capacity Charge for the Peak Hours of the Month;
 CCop = Capacity Charge for the Off-Peak Hours of the Month;
 CCpn = Capacity Charge for the Peak Hours of nth Month in a specific Season;
 CCopn = Capacity Charge for the Off-Peak of nth Month in a specific Season;
 AFC = Annual Fixed Cost;
 PAFMpn = Plant Availability Factor achieved during Peak Hours upto the end of nth Month in a Season;
 PAFMopn = Plant Availability Factor achieved during Off-Peak Hours upto the end of nth Month in a Season;
 NAPAF = Normative Annual Plant Availability Factor.

- (ii) Normative Plant Availability Factor for "Peak" and "Off-Peak" Hours in a month shall be equivalent to the NAPAF specified in Schedule -9A of these Regulations. The number of hours of "Peak" and "Off-Peak" periods during a day shall be four hours and twenty hours respectively. The hours of Peak and Off-Peak periods during a day shall be declared by the SLDC at least a week in advance. The High Demand Season (period of three months, consecutive or otherwise) and Low Demand Season (period of remaining nine months, consecutive or otherwise) in the State shall be declared by the SLDC, at least six months in advance :

Provided that SLDC, after duly considering the comments of the concerned stakeholders, shall declare Peak Hours and High Demand Season in such a way so as to coincide with the majority of the Peak Hours and High Demand Season of the state to the maximum extent possible :

Provided further that, for the year 2023-24, the high demand season and low demand season as declared by ERLDC shall be followed, unless SLDC declares a separate high and low demand season for the year.

- (iii) Any under-recovery or over-recovery of Capacity Charge as a result of under achievement or over-achievement, vis-à-vis the NAPAF in Peak and Off-Peak Hours of a Season (High Demand Season or Low Demand Season, as the case may be) shall not be adjusted with under-achievement or over-achievement, vis-à-vis the NAPAF in Peak and Off-Peak Hours of the other Season :

Provided that within a Season, the shortfall in recovery of Capacity Charge for cumulative Off-Peak Hours derived based on NAPAF, shall be allowed to be off-set by over-achievement of PAF, if any, and consequent notional over-recovery of Capacity Charge for cumulative Peak Hours in that Season :

Provided further that within a Season, the shortfall in recovery of Capacity Charge for cumulative Peak Hours derived based on NAPAF, shall not be allowed to be off-set by over-achievement of PAF, if any, and consequent notional over-recovery of Capacity Charge for cumulative Off-Peak Hours in that Season.

- (iv) The Plant Availability Factor achieved for a Month (PAFM) shall be computed in accordance with the following formula :

$$\text{PAFM or PAFY} = 10000 \times \sum_{i=1}^N \text{DC}_i / \{ N \times \text{IC} \times (100 - \text{AUX}) \} \%$$

Where,

AUX = Normative auxiliary energy consumption in percentage.

DC_i = Average declared capacity (in ex-bus MW) for the i^{th} day of the period i.e. the month or the year as the case may be, as certified by the concerned load dispatch centre after the day is over.

IC = Installed Capacity (in MW) of the generating station.

N = Number of days during the period.

Note: DC_i shall be equal to the implemented schedule based on actual availability after considering regulation 6.7 of these Regulations.

DC_i and IC shall exclude the capacity of generating units not declared under commercial operation. In case of a change in IC during the concerned period, its average value shall be taken.

Where a generating station has contracted a part of its installed capacity with the beneficiary, PLF shall be computed based on such contracted capacity in place of the installed capacity."

43. At the end of regulation 6.11.6 of the Principal Regulations, following sentences shall be inserted :

"The licensee in its petition for Annual Performance Review shall submit the computations for admissible annual capacity charge for its own generating station by following the same principle as specified in regulation 6.11.4 and/or 6.11.5 and admissible incentive as per Schedule-10 of these Regulations. Licensee shall submit the availability certificate and PLF certificate issued by the SLDC."

44. Regulation 6.13 of the Principal Regulations stands deleted.

45. Regulations 6.14.1 to 6.14.4 of the Principal Regulations stands deleted.

46. Regulation 6.17.4 of the Principal Regulations is substituted as follows:

"6.17.4 Late payment surcharge :

In case the payment of any bill for charges payable under these Regulations is delayed by a beneficiary beyond the due date of payment, a late payment surcharge at the rate of 1.25% per month on the billed amount or prorated for part thereof shall be levied by the generating company or the transmission licensee for the defaulted period reckoning from the due date :

Provided that the due date of payment shall be in accordance with the Power Purchase Agreement, Power Supply Agreement or Transmission Service Agreement, as the case may be, and if not specified in the agreement it shall be 45 days from the date of presentation of bill by such generating company or transmission licensee."

47. After clause (iii) of paragraph 8.1 of Schedule -1 of the Principal Regulations, the following proviso shall be inserted :

"Provided that in case of supply of coal from the integrated mine(s), the landed cost of primary fuel shall be based on the input price of coal, as the case may be, as computed in accordance with these Regulations."

48. The phrase "Depreciation, including advance against depreciation, and amortization of intangible assets" under serial no (d) of paragraph 3.1 of Schedule -3, serial no (d) of paragraph 2.1 of Schedule-4 and serial no (d) of paragraph 2.1 of Schedule -5 shall be substituted as "Depreciation and amortization of intangible assets:"

49. The items under serial no (ea) and (h) of paragraph 3.1 of Schedule-3 stand deleted.

50. The items under serial no (ea) and (h) of paragraph 2.1 of Schedule-4 stand deleted.

51. The items under serial no (f) and (j) of paragraph 2.1 of Schedule-5 stand deleted.

52. Schedule – 9A of the Principal Regulations is substituted as follows :

“Schedule - 9A

OPERATING NORMS

A. Norms for Coal Fired Thermal Generating Stations :

A1. Norms of Gross Station Heat Rate (SHR), Plant Load Factor (PLF), Plant Availability Factor (PAF), Auxiliary Energy Consumption (AEC), Secondary Fuel oil consumption, Man/MW ratio for determination of Employee Cost, Transit and handling loss of coal :

Name of the Generating Station	Unit Size	SHR	PLF	PAF	AEC	Secondary Fuel Oil consumption	Man/MW ratio	Transit and handling loss of coal
		(Kcal/kwh)	(%)	(%)	(%)	(ml/kWh)		(%)
CESC :								
Budge Budge TPS	3×250 MW	2470	80	85	9.00	1.30	1.58	0.75
Southern TPS	2×67.5MW	2900	80	85	9.00	2.10	3.50	0.75
WBPCL :								
Bakreswar TPS	5×210 MW	2470	80	85	9.00	1.30	1.60	0.50
Kolaghat TPS (Unit III to VI)	4×210 MW	2700	70	75	9.60	2.00	2.00	0.80
Bandel TPS (Unit-I)	1×60 MW	3050	65	70	10.40	2.50	4.80	0.80
Bandel TPS (Unit V)	1×215 MW	2430	80	85	9.00	1.75	1.95	0.80
Santalidih TPS (Unit V & VI)	2×250 MW	2425	80	85	9.00	1.00	2.45	0.80
Sagardighi TPS (Unit I & II)	2×300 MW	2345	80	85	9.00	1.00	1.35	0.80
Sagardighi TPS (Unit III & IV)	2×500 MW	2424	80	85	9.00	1.00	1.35	0.80
DPL :								
Unit-VII	1×300 MW	2345	80	85	8.5	1.00	1.20	0.50
Unit-VIII	1×250 MW	2425	80	85	9.0	1.00	1.20	0.50
IPCL :								
Dishergarh TPS (New)	1×12 MW	3300	80	85	10.00	0	3.50	0.30
Hiranmaye Energy Ltd.	2×150 MW	2477.15	80	85	10.50	1.00	1.35	0.80
Haldia Energy Ltd.	2×300 MW	2345	80	85	9.00	1.00	1.30	0.80

Note:-

- Stabilization period for coal fired thermal generating station shall be 180 days from the date of commercial operation of the unit.
- During stabilization period of new units, additional gross station heat rate on the basis of actual generation will be applicable, subject to a ceiling of 50 Kcal/ Kwh.
- During the stabilization period of new units, additional oil consumption on the basis of actual generation but subject to a ceiling rate of 3.5 ml / Kwh will be allowable.
- The Man/MW ratio in the above table is only for the purpose of determination of the cost of employee. The above Man/ MW ratio for different plants has considered all regular employees of own establishment as also all contracted manpower engaged directly or through man power supply company for working in the regular establishment. The tariff application of a licensee having its own generation activity shall show its manpower engaged in generating station(s) and manpower engaged in distribution business, separately.

- v) In case of de-rating of any unit of a generating station within the control period, the norms will continue but the total expenditure on man-power head and O&M cost will be allowed on the basis of installed capacity prior to such de-rating till the norms are not changed.
- vi) In case Life Extension Programme (LEP) of any of the units of a generating station has taken place then there will be change in all norms as will be provided by the Commission through tariff order or separate order.
- vii) Due to de-commissioning of old unit(s) of any existing generating station, the expenditure of the surplus man power will be allowed in the tariff after considering the due adjustment of such manpower to any new unit(s) of any generating station or any other part of the business by the generating company or licensees.

A2. Normative Operation and Maintenance (O&M) Expenses for Coal Fired Thermal Generating Station under Operation :

Name of the Generating Station	Unit Size	Norms of O&M Expenses (Rs lakh/ MW)		
		2023-24	2024-25	2025-26
CESC :				
Budge Budge TPS	3×250 MW	19.40	20.14	20.90
Southern Generating Station	2×67.5MW	23.87	24.77	25.71
WBPCL :				
Bakreswar TPS	5×210 MW	18.42	19.12	19.84
Kolaghat TPS	4×210 MW	23.04	23.91	24.82
Bandel TPS (Unit-I)	60 MW	22.90	23.77	24.67
Bandel TPS (Unit -V)	215 MW	21.07	21.87	22.70
Santalidih TPS	2×250 MW	15.89	16.49	17.11
Sagardighi TPS Stg- I	2×300 MW	11.14	11.56	12.00
Sagardighi TPS Stg- II	2×500 MW	8.67	9.00	9.34
DPL :				
Durgapur TPS Unit-VII	1×300 MW	12.00	12.45	12.92
Durgapur TPS Unit-VIII	1×250 MW	9.39	9.75	10.12
IPCL :				
Dishergarh TPS (New)	1×12 MW	19.01	19.73	20.48
Hiranmoyee Energy Ltd.	2×150 MW	11.20	11.62	12.06
Haldia Energy Ltd.	2×300 MW	13.45	13.96	14.49

Note:-

- i) The above O&M expenses are against the provisions of regulation 5.7;
- ii) The tariff application of a licensee having its own generation activity shall show its manpower engaged in generating station(s) and manpower engaged in business other than generation, separately.

A3. Stabilization Period :

In relation to a unit, stabilization period shall be reckoned commencing from the date of commercial operation of that unit as follows :

- (a) Coal based and lignite-fired generating stations - 180 days
- (b) Gas Turbine/ Combined cycle generating stations - 90 days

A4. The new generating station not covered under this Schedule 9A shall be covered by the principles laid down in Schedule - 9D.

B. Norms for Hydro Generating Station and Pumped Storage Plants :

B1. Norms of Auxiliary Energy Consumption and Plant Availability Factor for incentive purpose :

Sl. No.	Type of Hydro Generating Station	Auxiliary Energy Consumption	PAF
i)	Purely run of the river	1.0%	90 %
ii)	Pondage/storage type run of the river	1.0%	85 %
iii)	Small Hydro Generating Station	1.0%	90 %
iv)	Pumped Storage Type	1.7%	95 %

Note:-

- Small hydro generating stations mean all existing and future hydro generating stations having capacities of not more than 25 MW and consisting of such units whose turbo generator is under the same turbine floor and under the purview of the Commission, but are not specifically covered by the above table.
- For WBSEDCL, Rammam HEP Stage-II is to be considered as purely run of the river scheme.
- The normative availability factor of pumped storage type of hydro generating station shall be considered over a period of a year after deducting a downtime of 60 days or actual downtime whichever is less for each unit in the year once out of each five year blocks for major overhauling. This shall be considered for the year in which such overhauling will be done.

B2. Norms of Pumping Energy for Pumped Storage Hydro Generating Stations :

The norms of pumping energy is as per cycling efficiency in % defined as ratio of generation energy to pumping energy where such generation is made due to such quantum of water that has been pumped by the said pumping energy. The norms for such cycle efficiency will be treated as 74%.

B3. Norms of O&M Expenses of Hydro Generating Stations :

NORMATIVE O&M COST FOR HYDRO GENERATING STATIONS IN RUPEES LAKH/ MW ONLY			
NAME OF PLANT	2023-24	2024-25	2025-26
Jaldhaka HEP	22.21	23.05	23.92
Rammam HEP	16.00	16.61	17.74
Small Hydro	22.22	23.06	23.93
Purulia Pumped Storage Project	5.00	5.19	5.39

Note : For major overhauling correspondent to paragraph (iii) of the note under B1 above, an additional cost will be allowed on actual basis through APR only on submission of the relevant documents pertaining to such expenditures for major overhauling.

B4. Recommended Annual Man/ MW Ratio for determination of Employee Cost for Hydro Generating Stations under Operation and under Construction :

NORMATIVE MAN-POWER FOR HYDRO GENERATING STATIONS IN NUMBER OF PERSONS PER MW OF INSTALLED GENERATION CAPACITY	
NAME OF PLANT	
Jaldhaka HEP	6.90
Rammam HEP	4.75
Small Hydro	9.75
Purulia Pumped Storage Project	0.225

Note:-

- The above Man / MW ratio for different generating stations has considered all regular employees of own establishment as also all contracted manpower engaged directly or through man power supply company for working in the regular establishment.
- This Man/MW ratio in the above table is only for the purpose of determination of the cost of employees.
- The tariff application of a licensee having its own hydro generation activity shall show its manpower engaged in hydro generating station(s) and manpower engaged in business other than generation, separately.
- In case of operation of any of the activities of a licensee through a contract, the cost allowed for the contract shall be subject to a ceiling arrived at on the basis of said manpower and the average cost per employee in the licensee's regular establishment for the same category of employees.

C. Norms for Transmission Licensee :

C1. Norms for Availability of Transmission System :

PART OF TRANSMISSION SYSTEM	AVAILABILITY OF TRANSMISSION SYSTEM IN PERCENTAGE
Transmission Line	99.00
Sub-Station	97.00

C2. Norms for Transmission Loss for Transmission Licensees :

TRANSMISSION LICENSEE	TRANSMISSION LOSS (IN%)		
	2023-24	2024-25	2025-26
WBSETCL	2.70	2.70	2.70
Dedicated Transmission Lines	Case to case basis determined during tariff order of first ensuing year, not more than the norms specified for WBSETCL		

C3. Norms for Man Power per CKM of Transmission line for determination of Employee Cost for Transmission Licensee's Transmission Business :

TRANSMISSION LICENSEE	NO. OF MAN POWER PER CKM OF TRANSMISSION LINES
WBSETCL	0.35
Dedicated Transmission Lines	Case to case basis determined during tariff order of first ensuing year, not more than the norms specified for WBSETCL

C4. Norms of O&M Expenses for Transmission Licensee :**(a) For WBSETCL :**

PARTICULARS	2023-24	2024-25	2025-26
Norms for sub-station bays (Rs Lakh per bay)			
400 kV	4.77	4.95	5.14
220 kV	3.35	3.48	3.61
132 kV and below	2.38	2.47	2.56
Norms for Transmission lines (Rs. lakh per km)			
400 kV Single circuit (twin & triple conductor)	0.25	0.26	0.27
400 kV Double circuit (twin & triple conductor)	0.43	0.45	0.46
400 kV Double circuit (bundled conductor)	0.65	0.67	0.70
400 kV Multi circuit (twin & triple conductor)	0.76	0.78	0.81
220 kV Single circuit (single conductor)	0.12	0.13	0.13
220 kV Double circuit (single conductor)	0.18	0.19	0.20
220 kV Multi circuit (single conductor)	0.76	0.78	0.81
132 kV Single circuit (single conductor)	0.12	0.13	0.13
132 kV Double circuit (single conductor)	0.18	0.19	0.20
132 kV Multi circuit (single conductor)	0.76	0.78	0.81

(b) For dedicated transmission line :

Composite O&M expenses for dedicated transmission line and bays of dedicated transmission line of any generating station for any ensuing years shall be determined based on the trued-up expenses of the last five years. O&M expenses for base year shall be computed considering the average of last 5 years', preceding to base year, trued up figures duly normalized after applying hybrid inflation index considering 60% wholesale price index (WPI) and 40% consumer price index (CPI) notified by the Government of India. O&M expenditure for the ensuing year shall be determined by applying average hybrid inflation index of last 5 years over the derived base value.

D. Norms for Distribution Licensee :**D1. Norms of Distribution Losses for Different Distribution Licensees :**

NORMS OF DISTRIBUTION LOSS IN PERCENTAGE OF DISTRIBUTION LICENSEES			
DISTRIBUTION LICENSEE	2023-24	2024-25	2025-26
WBSEDCL	16.50	15.50	14.50
CESC	9.00	8.50	8.00
IPCL	5.00	4.50	4.00
DVC	2.75	2.75	2.75

Note : If any licensee owns and runs any generating station located outside its area of supply and transmits any energy generated by such a generating station to its area of supply through a dedicated transmission line, the transmission loss associated with such transmission shall be determined by the Commission separately and the same shall not be governed by the distribution loss shown in the above table. In case the licensee sources electricity using its EHV system through any transmission system in the areas beyond the area of supply of the licensee, the Commission shall also determine the loss associated with the EHV system separately and the same shall not be governed by the distribution loss shown in the above table

D2. Norms for Repair & Maintenance Expenses of distribution licensees :

In percentage of Gross Fixed Asset			
Distribution licensee	2023-24	2024-25	2025-26
WBSEDCL	3.50	3.64	3.78
CESC	2.20	2.28	2.37
IPCL	1.97	2.05	2.12
DVC	1.97	2.05	2.12

53. Schedule - 9B of the Principal Regulations stands deleted.

54. For paragraph (1) of Schedule -10 of the Principal Regulations, the following paragraph is substituted :

“(1) INCENTIVE FOR GENERATION HIGHER THAN ANNUAL NORMS :

Incentive to a thermal generating station or unit thereof shall be payable at a rate of 65 paise/kWh for ex-bus scheduled energy during peak hours and at a rate of 50 paise /kwh for ex-bus scheduled energy during off-peak hours corresponding to scheduled generation in excess of ex-bus energy corresponding to Target Plant Load Factor (TPLF) achieved on a cumulative basis within each season (High Demand Season or Low Demand Season, as the case may be). Such incentive will be computed annually and Generating Company or the licensee shall submit its claim of incentive in APR petition along with certified copy of achieved PLF from SLDC :

Provided that for the purpose of above incentive TPLF shall be considered same as normative PAF of the respective power plant :

Provided further that the plants which has adjusted its enhanced availability in terms of regulation 2.8.6.7 of the Tariff Regulations are not eligible for above incentive.”

55. Paragraphs 2, 3, 4 and 5 of Schedule -10 of the Principal Regulations stands deleted.

56. At the end of paragraph 11 of Schedule 10 of the Principal Regulations following paragraph shall be inserted :

“The incentive for reliability shall be applicable for the licensee where mechanism for validation of reliability data is put in place.”

57. Annexure - A of the Principal Regulations is substituted with the following Annexure-A(I) and Annexure-A(II).

“Annexure - A(I)

[See Regulation 5.6.2(ii)]

DEPRECIATION SCHEDULE

	Description of Assets	Depreciation Rate (Salvage value =10%)
A	Land owned under full title	--
B	Land held under lease	
	a) For investment in the land	3.34%
	b) For cost of clearing the site	3.34%
	c) Land for reservoir in case of Hydro Generating Station	3.34%
C	Assets Purchased New :	
	(a) Plant and Machinery in generating stations including plant foundations	

	Description of Assets	Depreciation Rate (Salvage value =10%)
	i) Hydro-electric	5.28%
	ii) Steam electric NHRS & Waste Heat Recovery Boilers / Plants	5.28%
	iii) Diesel-electric and gas plant	5.28%
	(b) Cooling towers and circulating water systems	5.28%
	(c) Hydraulic works forming part of the Hydro -electric systems	
	i) Dams, Spillways, weirs, canals, reinforced concrete Flumes and siphons	5.28%
	ii) Reinforced concrete pipelines and surge tanks, steel pipelines, sluice gates, steel surge (tanks), hydraulic control valves and other hydraulic works	5.28%
	(d) Building & civil Engineering works of a permanent character	
	i) Offices & showrooms	3.34%
	ii) Containing thermo-electric generating plant	3.34%
	iii) Containing hydro-electric generating plant	3.34%
	iv) Temporary erection such as wooden structures	18.00%
	v) Roads other than kutchra roads	3.34%
	vi) Others	3.34%
	(e) Transformers, transformer (Kiosk), sub-station equipment & other fixed apparatus (including plant foundations)	
	i) Transformers (including foundations) having a rating of 100 KVA and over	5.28%
	ii) Others	5.28%
	(f) Switchgear including cable connections	5.28%
	(g) Lightning arrestors	
	i) Station type	5.28%
	ii) Pole type	5.28%
	iii) Synchronous condenser	5.28%
	(h) Batteries	18.00%
	(i) Underground Cable including joint boxes and disconnected boxes	5.28%
	(j) Cable duct system	5.28%
	(k) Overhead lines including supports	
	i) Lines on fabricated steel operating at nominal voltages higher than 66 kV	5.28%
	ii) Lines on steel supports operating at nominal voltages higher than 13.2 kV but not exceeding 66 kV	5.28%
	iii) Lines on steel or reinforced concrete supports	5.28%
	iv) Lines on treated wood supports	5.28%
	(l) Meters	
	(i) Electro-magnetic Meter	6.00%
	(ii) Electronic Meter	18.00%
	(k) Self-propelled vehicles	18.00%

	Description of Assets	Depreciation Rate (Salvage value =10%)
(l)	Air conditioning plants :	
	i) Static	5.28%
	ii) Portable	18.00%
(m)	Office Furniture and Equipments :	
	i) Office furniture and fittings	6.33%
	ii) Office equipments	6.33%
	iii) Electronic Office Equipments	6.33%
	iv) Internal wiring including fittings and apparatus	6.33%
	v) Street light fittings	6.33%
(n)	Apparatus let on hire	
	i) Other than motors	18.00%
	ii) Motors	6.33%
(o)	Communication equipment :	
	i) Radio and high frequency carrier system	6.33%
	ii) Telephone lines and telephones	6.33%
(p)	IT equipments including software	12.85%
(q)	Any other assets not covered above	5.28%

Note:-

- 1) For this purpose, all motor vehicles including dumper, dozer, etc. should include self-propelled vehicles.
- 2) The above rates of depreciation will be applicable for determination of tariff as well as for accounting purpose.
- 3) For lease hold land, useful life shall be the period of lease or the period remaining un-expired on the assignment of the lease.

Annexure - A(II)

[See Regulation 1.2.1(cxv)(A)]

DEPRECIATION SCHEDULE

	Description of Assets	Useful Life in years
A	Land owned under full title	Infinity
B	Land held under lease	
	a) For investment in the land	The period of lease or the period remaining un-expired on the assignment of the lease or at the date of clearing the site, as the case may be.
	b) For cost of clearing the site	
	c) Land for reservoir in case of Hydro Generating Station	

	Description of Assets	Useful Life in years
C	Assets Purchased New :	
	(a) Plant and Machinery in generating stations including plant foundations	
	i) Hydro-electric	35
	ii) Steam electric NHRS & Waste Heat Recovery Boilers / Plants	25
	iii) Diesel-electric and gas plant	15
	(b) Cooling towers and circulating water systems	25
	(c) Hydraulic works forming part of the Hydro-electric systems	
	i) Dams, Spillways, weirs, canals, reinforced concrete Flumes and siphons	50
	ii) Reinforced concrete pipelines and surge tanks, steel pipelines, sluice gates, steel surge (tanks), hydraulic control valves and other hydraulic works	35
	(d) Building & civil Engineering works of a permanent character	
	i) Offices & showrooms	50
	ii) Containing thermo-electric generating plant	25
	iii) Containing hydro-electric generating plant	35
	iv) Temporary erection such as wooden structures	5
	v) Roads other than kutchra roads	50
	vi) Others	50
	(e) Transformers, transformer (Kiosk), sub-station equipment & other fixed apparatus (including plant foundations)	
	i) Transformers (including foundations) having a rating of 100 KVA and over	25
	ii) Others	25
	(f) Switchgear including cable connections	25
	(g) Lightning arrestors	
	i) Station type	25
	ii) Pole type	15
	iii) Synchronous condenser	35
	(h) Batteries	5
	(i) Underground Cable including joint boxes and disconnected boxes	35
	(j) Cable duct system	50
	(k) Overhead lines including supports	
	i) Lines on fabricated steel operating at nominal voltages higher than 66 kV	35
	ii) Lines on steel supports operating at nominal voltages higher than 13.2 kV but not exceeding 66 kV	25
	iii) Lines on steel or reinforced concrete supports	25
	iv) Lines on treated wood supports	25
	(l) Meters	
	(i) Electro-magnetic Meter	15
	(ii) Electronic Meter	7
	(m) Self-propelled vehicles	5
	(n) Air conditioning plants :	
	i) Static	15
	ii) Portable	5

	Description of Assets	Useful Life in years
	(o) Office Furniture and Equipments :	
	i) Office furniture and fittings	15
	ii) Office equipments	15
	iii) Electronic Office Equipments	15
	iv) Internal wiring including fittings and apparatus	15
	v) Street light fittings	15
	(p) Apparatus let on hire	
	i) Other than motors	5
	ii) Motors	15
	(q) Communication equipment :	
	i) Radio and high frequency carrier system	15
	ii) Telephone lines and telephones	15
	(r) Computer system and IT equipment	7

Note:-

- 1) For the extension of life of the projects beyond the completion of their Useful Life shall be decided by the Commission on case to case basis;"
58. Additional categories for Military Engineering Service (MES) and Electric Vehicle Charging Station (EV) shall be added under the list of LV&MV consumers in the table of Annexure- C1 to the Principal Regulation.
59. For clause (iii) under Note of Annexure-C1 to the Principal Regulations, the following clause is substituted :
“(ii) Public utility / Public bodies means any type of State and Central Government / local bodies establishments such as offices, crematorium, correctional home, library, etc. (save in respect of used for residential purpose), Government / Government aided / Government sponsored Hospitals, Research /Educational Institutions (save in respect of used for residential purpose).”
60. Sub-clause (d) of clause (v) under Note of Annexure-C1 to the Principal Regulations stands deleted.
61. For clause (ix) under Note of Annexure-C1 to the Principal Regulations, the following clause is substituted :
“(ix) Short-term supply includes events, mela / fair, festivals and marriage ceremony. Such short-term supply shall not have any load factor rebate and power factor rebate. However, other charges for such short-term supply shall be the same as are applicable to that particular category of consumer to which the applicant seeking such short-term supply belongs. For such short-term supply, consumer shall apply to the licensee at least 10 days in advance for LV and MV consumers and at least 20 days in advance for HV consumer.”
62. For clause (x) under Note of Annexure-C1 to the Principal Regulations, the following clause is substituted.
“(x) Domestic consumer having monthly consumption upto 25 units in case of monthly billing or having quarterly consumption upto 75 units in case of the quarterly billing and contract demand not more than 0.3 KW shall be treated as Life Line Domestic Consumer.
After completion of every financial year (for new domestic consumer after passing of one (01) complete financial year), the eligibility of Life Line Domestic Consumer will be revisited based on average consumption of the financial year on monthly or quarterly basis, as the case may be.”
63. After clause (x) under Note of Annexure-C1 to the Principal Regulations, the following clause shall be inserted :
“(xi) Domestic tariff is applicable for electricity used for residential purpose and all type of religious places supplied at single point.”
64. In the Table under Annexure C2 of the Principal Regulations, optional tariff scheme for all LV & MV categories shall be Normal -TOD/ prepaid / prepaid-TOD.
65. Clause (xix) under Note of Annexure-C2 to the Principal Regulations stands deleted.

66. For Form 1.12, Form 1.13, Form 1.15, Form 1.16, Form 1.17 (a), Form 1.17 (b), Form 1.17 (c), Form 1.17 (e), Form 1.17 (g), Form 1.20 (a), Form 1.20 (b), Form 1.23, Form B, Form C, Form E(A), Form E(B) and Form E(T) of Annexure - 1 to the Principal Regulations, the following Forms is substituted:

Annex 1

"Form 1.12 : Expenditure - Generation of Electricity (station wise)"

Ref.	Particulars	Previous Year				Base Year	Ensuing Year				
		Four Actuals	Three Actuals	Two Actuals	One Actuals		One Projected	Two Projected	Three Projected	Four Projected	Five Projected
1	Fuel Cost (i) Coal (ii) Oil										
2	Employee Cost [Form 1.17 (h) & (i)]										
3	(i) Own Employees										
4	(ii) Contractual Employee in regular establishment										
5	Operation & maintenance Expenses										
6	Demurrage for Transportation of Fuel										
7	Water Charges										
8	Statutory charges										
9	(Licensee fees, filing fees, municipal tax, etc)										
10	Depreciation [Form B]										
11	Intangible Asset written off										
12	Expenses due to Penalty, Fines etc.										
13	Interest on Capital loan [Form 1.20(b)]										
14	Interest on working capital [Form 1.17(b)]										
15	Income tax										
16	Other Finance Charges [Form 1.17 (c)]										
17	Foreign Exchange rate variation on loan repayments										
18	[Form 1.17(d)]										
19	Others (specify)										
20	Overall (1:15)										

Note: Basis of estimation for each element for base year and ensuing years is to be specified under note.

Form 1.15: Expenditure - Distribution of Electricity

Ref.	Particulars	Previous Year				Base Year	Ensuing Year				
		Four	Three	Two	One		One	Two	Three	Four	Five
		Actuals	Actuals	Actuals	Actuals		Projected	Projected	Projected	Projected	Projected
1	Employee Cost [Form 1.17 (h) & (i)] (i) Own Employees (ii) Contractual Employee in regular establishment					Estimated					
2	Operation & maintenance Expenses (i) Repair & Maintenance (incl consumables) (ii) Administrative & General expenses (iii) OPEX related expense										
3	Statutory charges (Licensee fees, filing fees, municipal tax, etc)										
4	Depreciation [Form B]										
5	Intangible Asset written off										
6	Expenses due to Penalty, Fines etc.										
7	Interest on Capital loan [Form 1.20(b)]										
8	Interest on working capital [Form 1.17(b)]										
9	Income tax										
10	Other Finance Charges [Form 1.17(c)]										
11	Foreign Exchange rate variation on loan repayments [Form 1.17(d)]										
12	Others (specify)										
	Overall (1:12)										

Note: 1. Basis of estimation for each element for base year and ensuing years is to be specified under note

2. Fixed charges of distribution business are to be shared between distribution (Form 1.15) and sale (Form 1.16) and the basis shall be specified. Form 1.15 shall cover network related expenses.

Form 1.16: Expenditure - Sale of Electricity

Ref.	Particulars	Previous Year				Base Year	Ensuing Year				
		Four	Three	Two	One		One	Two	Three	Four	Five
		Actuals	Actuals	Actuals	Actuals		Projected	Projected	Projected	Projected	Projected
1	Power Purchase cost					Estimated					
2	Transmission charge										
	(i) CTU charges										
	(ii) STU charges										
3	Power System charges										
	(i) ERLDC charges										
	(ii) ERPC charges										
	(iii) SLDC charges										
4	Employee Cost [Form 1.17 (h) & (i)]										
	(i) Own Employees										
	(ii) Contractual Employee in regular establishment										
5	Operation & maintenance Expenses										
	(i) Repair & Maintenance (incl consumables)										
	(ii) Administrative & General expenses										
6	Statutory charges										
7	Depreciation [Form B]										
8	Intangible Asset written off										
9	Expenses due to Penalty, Fines etc.										
10	Interest on Capital loan [Form 1.20(b)]										
11	Interest on working capital [Form 1.17(b)]										
12	Income tax										
13	Other Finance Charges [Form 1.17 (c)]										
14	Foreign Exchange rate variation on loan repayments [Form 1.17(d)]										
15	Late payment surcharge										
17	Others (specify)										
	Overall (1.16)										

Note: 1. Basis of estimation for each element for base year and ensuing years is to be specified under note

2. Fixed charges of distribution business are to be shared between distribution (Form 1.15) and sale (Form 1.16) and the basis shall be specified.

Form 1.17 (a) Water charges: Generating (station wise)

Ref.	Particulars	Previous Year				Base Year	Ensuing Year				
		Four Actuals	Three Actuals	Two Actuals	One Actuals		One Projected	Two Projected	Three Projected	Four Projected	Five Projected
1	Normative PLF (in %)										
2	Generation at Normative PLF (in MU)										
3	Water consumption at normative PLF (in KL)										
4	Spillage of water (in %)										
5	Source-wise water quantity (in KL)										
	(i) Source 1										
	(ii) Source 2										
	Total quantity										
6	Rate specified (as per govt. notification or agreement) [in Rs. /LK]										
	(i) Source 1										
	(ii) Source 2										
7	Water charge claimed [5 X 6] (in Rs. Lakh)										
	(i) Source 1										
	(ii) Source 2										
	Total Water Charge										

Note: Water cess will be claimed separately as a part of statutory charges.

Form 1.17 (b) Interest on Working Capital

Particulars	Previous Year				Base Year	Ensuing Year				
	Four	Three	Two	One		One	Two	Three	Four	Five
	Actuals	Actuals	Actuals	Actuals		Projected	Projected	Projected	Projected	Projected
A. Cost of Coal stock (pit head 10 days, non-pit-head 20 days)										
B. Advance payment of coal (30 days)										
C. Cost of secondary fuel oil for 2 months										
D. (i) O&M expense for 1 month										
(ii) Employee cost for 1 month										
(iii) Water charge for 1 month										
E. Maintenance spare (20 % of O&M and water charge for thermal generator, 15% of O&M for hydro plant, pumped storage, transmission and distribution)										
F. Receivables equivalent to 45 days										
Less:										
G. Cash security deposit from transmission and/or distribution system users, as the case may be.										
Working Capital Requirement = A+B+C+D+E+F- G										
H. Interest rate at SBI MCLR +250 basis point										
I. Interest on Working Capital										

Note: 1. All computations shall in accordance with regulation 5.6.5 of these Regulations.

2. A, B, C and D(iii) will be applicable for thermal generating station only, the computation break-up will be provided for each head specifying quantum and price of coal, oil and water considered.

3. No receivable amount shall be considered for generating stations owned by distribution licensee.

4. Cash security deposit held with distribution licensee shall be first used to meet working capital requirement of its distribution business. Balance security deposit, if any, shall be used to meet working capital requirement of its generation business. If still some cash deposit remains, interest of such amount will be considered as non-tariff income and to be shown separately.

Form 1.17 (g) : Statement of Expenditure (major overhauling etc) included in Fixed Assets

Sl No	Nature of Expenditure included in Assets	Category of Assets in which included	Value As on the beginning of the financial year	Addition during the year	Depreciation charged upto the last year	Depreciation charged for the current year
1	Capital Overhauling					
2	Other similar Items (to be specified)					

Form 1.20(a) : Return on Equity

Sl. No.		Particulars	Previous Year				Base Year	Ensuing Year						
			Four Actuals	Three Actuals	Two Actuals	One Actuals		Estimated	One Projected	Two Projected	Three Projected	Four Projected	Five Projected	
1		Actual Equity base at the beginning of the year												
2		Admissible Equity base at the beginning of the year												
3		a. Addition to equity base during the year												
		b. Deletion to equity base during the year on account of decommissioning of assets, etc.												
		c. Less: Gain on sale of assets invested in creating new assets, if any												
		Net Addition/ deletion to equity base during the year (3) = (3a) - 3(b) - 3(c)												
4		Actual Equity base at the end of the year (1) + (3)												
5		Net addition to the original cost of fixed assets during the year (vide submission in form 1.18)												
6		Less Asset created in terms of regulation 5.15.1 (iv), if any												
7		Net addition to the original cost of fixed assets during the year (vide submission in form 1.18) other than asset created under regulation 5.15.1 (iv) (5) - (6)												
8		Normative addition to Equity Base @ 30% of (7)												
9		Addition to Equity Base considered for the year lower of (3) and (8)												
10		Add 30% of total sale proceeds invested in creating Asset under regulation 5.15.1 (iv)												
11		Addition in equity base during the year for the computation of return at the end of the year (9) + (10)												
12		Admissible equity base at the closing of the year (2) + (11)												
13		Average admissible equity base for allowing returns $\{(2) + (12)\}/2$												

Note: For assets added after 1.4.2024, form 1.20(a) shall be furnished separately.

Form-B : Details of Depreciation chargeable to revenue account for the year (Year wise)

Particulars	Opening Balance of Approved Cost of Assets	1	2	3	4	5=1+3+4	6	Value of Assets classified into different rates				Other rates, if any	Land-FH	Total	Retirements of Assets during the year	Closing Balance of Approved Cost of Assets
								3.34%	5.28%	6.33%	12.85%	18.00%				
A. Generating Assets								7a	7b	7c	7d	7e	7f	7g	8=6+7	10=1+3-9
1. Assets prior to cut-off date																
Cost																
Depreciation for the year																
2. Assets after cut-off date																
Cost																
Depreciation for the year																
B. Transmission Assets																
1. Assets prior to cut-off date																
Cost																
Depreciation for the year																
2. Assets after cut-off date																
Cost																
Depreciation for the year																
C. Distribution Assets																
1. Assets prior to cut-off date																
Cost																
Depreciation for the year																
2. Assets after cut-off date																
Cost																
Depreciation for the year																
OVERALL (A+B+C)																

Note : 1. Auditor's certificate regarding 'block of assets' prior to the cut-off date and depreciation & AAD against such assets for (a) assets depreciated upto 70% and (b) assets depreciated more than 70% shall be certified

2. Approved cost of assets also includes assets within the limits specified under regulations 2.8.2.3 and 2.8.4.1, where approval is not required in terms of regulation 2.8.5 of these Regulations. Generating Companies and Licensees, as the case may be, shall submit break-up of approved assets and assets developed under regulations 2.8.2.3 and 2.8.4.1 separately.

3. For part / full capitalized assets, where final project cost has not been approved under regulation 2.8.5 of these Regulations, the investment approval value vis-à-vis the audited value of part/full asset capitalized shall be submitted separately.

Form - C: Statement of Loans and Calculation of Interest thereon for the year (Year wise)

Sl. No.	Sources of Loans.	Original Amount of loan	Cumulative amount of loan drawal		Cumulative repayment upto the preceding year = Depreciation + AAD	Outstanding Balance at the beginning of the year	Normal rate of interest (%)	Repayment due Amount/ Date	Fresh Drawal if any Amount/ Date	Interest paid / payable				Balance at the close of the year	Remarks if any
			(COD of asset)	(Work in Progress)						Normal	Penal	Rebate	Total		
1	2	3	4	5	6	7=4-6	8	9	10	11	12	13	14	15=7-9+10	16
A	On Capital Accounts.														
	1. Source 1														
	2. Source 2														
															
	Total on capital account														
	Weighted avg interest = total interest at normal rate/((opening loan balance + closing loan balance)/2)														
B	Loan on Working Capital														
	1. Source 1														
	2. Source 2														
															
	Total on revenue account														
	Weighted avg interest = total interest at normal rate/((opening loan balance + closing loan balance)/2)														
C	Overall actual (A+B)														

Notes : 1) Loans bearing different interest rates and terms should not be clubbed even if from same sources.

2) Loans with variable rate of interest should be clearly identified with the mention of base date rates.

3) In case of foreign currency loans, the exchange rates adopted at opening balance, closing balance and repayments should be mentioned. The base rate of exchange on the date of drawal of capital loan should be indicated.

4) If loan is taken from a group company or subsidiary etc., same should be justified.

5) Any rate of interest which is above SBI MCLR should be fully justified along with necessity of the loan.

6) The details of fresh drawal of capital loan may be enclosed along with detail justifications, purpose and supporting cash flow which necessitated the drawal of loan along with investments made or proposed and average bank balances.

7) Any default in loan repayment of loan may also be suitably explained along with relevant details. Rebate for prompt payment etc. or penalty for delayed /non-payment to be disclosed separately.

Form E(A): Summarised Revenue Requirement - Generating Company (station wise)

Ref.	Particulars	Previous Year				Base Year	Ensuing Year				
		Four	Three	Two	One	Estimated	One	Two	Three	Four	Five
		Actuals	Actuals	Actuals	Actuals		Projected	Projected	Projected	Projected	Projected
1	Fuel										
2	Employee Cost										
	a) Employee cost [Form 1.17(h)]										
	b) Arrear [Form 1.17(i)]										
3	Operation & Maintenance Expenses										
4	Water charges [Form 1.17(a)]										
5	Statutory Charges [Form 1.17(e)]										
6	Finance Cost										
	a) Interest on Capital Loan [Form 1.20(b)]										
	b) Interest on Working Capital [Form 1.17(b)]										
	c) Foreign Exchange Rate Variation [Form 1.17(d)]										
	d) Other Financing Charges [Form 1.17(c)]										
7	Depreciation										
8	Intangible Asset Write Off										
9	Bad Debt (see regulation 5.10.1)										
10	Income Tax										
11	Reserve for unforeseen exigencies										
12	Demurrage of coal transportation										
13	Others if any to be specified										
14	Total Expenditure (sum of 1:13)										
15	Normative Return [Form 1.20(a)]										
16	Permitted Incentives [Form 1.23]										
17	Gross Revenue Required (14+15+16)										
18	a) Less : Income other than sale of energy [Form 1.26]										
	b) Less : Benefits passed on to Consumers [Form 1.24]										
	c) Less : Expenses attributable to persons other than licensees or any consumers										
19	Aggregate Revenue Required (17-18)										

Note : Generating Companies are to furnish Form E(A)

* Where actuals are not available, estimated figures are to be furnished.

Form E(B): Summarised Revenue Requirement - Distribution

Ref.	Particulars	Previous Year				Base Year		Ensuing Year				
		Four Actuals	Three Actuals	Two Actuals	One Actuals	Estimated	Projected	One Projected	Two Projected	Three Projected	Four Projected	Five Projected
1	Fuel cost of own generating station											
2	Power Purchase Cost											
3	Transmission charge											
	Inter-state transmission charges											
	Intra-state transmission charges											
4	Power system charge (ERLDC, ERPC, SLDC charges)											
5	Employee Cost											
	a) Employee cost [Form 1.17(h)]											
	b) Arrear [Form 1.17(i)]											
6	Repairs & Maintenance incl. Consumables											
7	Administrative & General Expenses											
8	Water charges of own generating station [Form 1.17(a)]											
9	Statutory charges [Form 1.17(c)]											
10	Finance Cost											
	a) Interest on Capital Loan [Form 1.20(b)]											
	b) Interest on Working Capital [Form 1.17(b)]											
	c) Foreign Exchange Rate Variation [Form 1.17(d)]											
	d) Other Financing Charges [Form 1.17(c)]											
	e) Interest on Security Deposits											
11	Depreciation											
12	Intangible Asset Write Off											
13	Bad Debt (see regulation 5.10.1)											
14	Income Tax											
15	Reserve for unforeseen exigencies											
16	Demurrage for coal transportation											
17	Others if any to be specified											
18	Total Expenditure (sum of 1-17)											
19	Normative Return [Form 1.20(a)]											
	Permitted Incentives [Form 1.23]											
19	Gross Revenue Required (16+17+18)											
20	a) Less: Income other than sale of energy [Form 1.26]											
	b) Less: Benefits passed on to Consumers [Form 1.24]											
	c) Less: Expenses attributable to persons other than licensees or any consumers											
	d) DSM charges Receivable											
21	Aggregate Revenue Required (19 -20)											
22	Release of Regulatory Asset, if any											
23	Subsidy received / receivable, if any											
24	Revenue recoverable from charges (21 +22 -23)											
25	Expected Revenue from sale of Energy (Actual estimate)											
26	Average cost of Supply (Pause/Unit)											

Note: Distribution Licensees are to furnish Form E(B)

Distribution licensees having own generating station shall submit separate details for generation business in E(A) format.

* Where actuals are not available, estimated figures are to be furnished.

Form E(T): Summarised Revenue Requirement - Distribution

Ref.	Particulars	Previous Year				Base Year			Ensuing Year						
		Four Actuals	Three Actuals	Two Actuals	One Actuals	Estimated	Projected	Projected	Projected	Projected	Projected	Projected			
A.															
1	Energy Input [Form 1.7]														
2	Energy Transmitted [Form 1.7]														
3	Allocated Transmission capacity														
4	Actual Transmission Loss % [Form 1.7]														
B.															
1	Employee Cost														
	a) Employee cost [Form 1.17(h)]														
	b) Arrear [Form 1.17(i)]														
2	Operation & Maintenance Expenses														
3	Statutory charges [Form 1.17(e)]														
4	Finance Cost														
	a) Interest on Capital Loan [Form 1.20(b)]														
	b) Interest on Working Capital [Form 1.17(b)]														
	c) Foreign Exchange Rate Variation [Form 1.17(d)]														
	d) Other Financing Charges [Form 1.17(c)]														
	e) Interest on Transmission Users' Security Deposits, if any.														
5	Depreciation														
6	Bad Debt [see regulation 5.10.1]														
7	Intangible Asset Write Off														
8	Income Tax														
9	Reserve for Unforeseen Exegencies														
10	Others if any to be specified														
11	Total Expenditure (sum of 1-10)														
12	Normative Return [Form 1.20(a)]														
13	Permitted Incentives [Form 1.23]														
14	Gross Revenue Required (11+12+13)														
15	a) Less: Income other than revenue from transmission of energy [Form 1.26]														
	b) Less: Benefits passed on to Transmission Users														
	c) Less: Others if any to be specified														
16	Aggregate Revenue Required (14-15)														
17	Release of Regulatory Asset, if any														
18	Subsidy received / receivable, if any														
19	Revenue recoverable from charges (16 +17 -18)														
20	Expected Revenue from Transmission of Energy (Actual estimate)														
21	Transmission charge (Rs./MW/Month)														
Note: Transmission Licensees are to furnish Form E(T)															
* Where actuals are not available, estimated figures are to be furnished.															

Note: Transmission Licensees are to furnish Form E(T)

* Where actuals are not available, estimated figures are to be furnished.

67. Form 1.17, Form 1.17(f), and Form 1.17(k) of Annexure – 1 to the Principal Regulations stands deleted.
68. Following Form 1.18(d) shall be inserted after Form 1.18(c)(ii) of Annexure -1 to the Principal Regulations :

“

Form 1.18 (d) : Decapitalised Asset

Sl No	Asset Name	COD	Date of Decapitalisation	Cost of acquisition as on date of decapitalisation	Depreciation and AAD charged upto the date of Decapitalisation	Sale proceeds Received, if any	Gain or loss on sale of decapitalised asset if any

Note: The cost of decapitalised asset should be adjusted from the Gross Fixed Assets in Form 1.18 (a) and shown as separate line item

”

69. For paragraph 3 and 5 of Annexure-7 to the Principal Regulations, following paragraph are substituted :

“3. Application submitted by..... (Name of applicant) may be inspected at the office of the Commission and (other address, if any) following the procedures as laid down in the West Bengal Electricity Regulatory Commission (Conduct of Business) Regulations 2013 as amended fromAM toPM on all working days upto one day prior to last day of submission of suggestions / objections.”

“5. The suggestions, objections and comments, if any, on the proposals contained in the application may be submitted at the office of the Commission at the above mentioned address fromAM till PM within days from the date of publication (including the date of publication) of this notice in the newspaper.”

70. At the end of Principal Regulations, following Annexure-10 shall be added :

“

Asset Register Summary

Assets prior to cut-off date: _____

A	Type of Asset (as categorised in Annexure-A1 of this Regulation)		Category 1	Category 2	Category 3	----- --	Total
			(Rs. in lakh)				
B	Opening Gross Value of Asset as on 01st April of the FY _____						
	Assets fully Depreciated (90%)	B1					
	Assets Depreciated 70% or more but less than 90%	B2					
	Assets Depreciated less than 70%	B3					
	Total	B=B1+B2+B3					
C	Gross Value of Assets de-commissioned during the FY _____						
	Assets fully Depreciated (90%)	C1					
	Assets Depreciated 70% or more but less than 90%	C2					
	Assets Depreciated less than 70%	C3					
	Total	C=C1+C2+C3					
D	Total Gross Value at the end of the FY _____						
	Assets fully Depreciated (90%)	D1=B1 - C1					
	Assets Depreciated 70% or more but less than 90%	D2=B2 - C2					
	Assets Depreciated less than 70%	D3=B3 - C3					
	Total	D=D1+D2+D3					

	Type of Asset (as categorised in Annexure-A1 of this Regulation)		Category 1	Category 2	Category 3	----- --	Total
			(Rs. in lakh)				
E	Accumulated Depreciation of the opening Assets						
	Assets Depreciated upto 90%	E1					
	Assets Depreciated 70% or more but less than 90%	E2					
	Assets Depreciated less than 70%	E3					
	Total	E=E1+E2+E3					
F	Adjustment during the FY _____ of Accumulated Depreciation of de-commissioned Assets as on date of de-commissioning						
	Assets fully Depreciated (90%)	F1					
	Assets Depreciated 70% or more but less than 90%	F2					
	Assets Depreciated less than 70%	F3					
	Total	F=F1+F2+F3					
G	Depreciation during the year						
	Assets Depreciated 70% or more but less than 90%	G1					
	Assets Depreciated less than 70%	G2					
	Total During the year	G=G1+G2					
H	Closing Balance of Accumulated Depreciation						
	Assets Depreciated upto 90%	H1=E1-F1					
	Assets Depreciated 70% or more but less than 90%	H2=(E2-F2)+G1					
	Assets Depreciated less than 70%	H3=(E3-F3)+G2					
	Total	H=H1+H2+H3					
I	Net Book Value as on last date of the Financial year						
	Assets fully Depreciated (90%)	I1=D1-H1					
	Assets Depreciated 70% or more but less than 90%	I2=D2-H2					
	Assets Depreciated less than 70%	I3=D3-H3					
	Total	I=I1+I2+I3					

Note :

- For assets depreciated more than 70% but less than 90%, the effective age of asset will be considered as [= useful life X % of asset already depreciated /90]. Balance depreciable value (i.e upto 90% of asset value) will be spread over balance useful line.
- Intangible Assets, if any, and its amortisation should be shown separately

Sl No	Particulars	As on Last Date of the Financial Year (Rs in Lakh)	Depreciation for the year on such Assets (Rs in Lakh)
1	Gross Value of Fixed Asset created out of consumer contribution		
2	Gross Value of Fixed Asset created out of Government grant, etc.		
3	Gross Value of Fixed Asset where investment approval is not required in terms of Tariff Regulations		
4	Gross Value of Fixed Assets for which final project cost approval under regulation 2.8.5 has been obtained		
5	Gross Value of Fixed Assets which are partly commissioned or for which final project cost approval under regulation 2.8.5 pending		
	Total GFA (1 to 5)		
6	Investment approval amount considered by the Commission on the assets at Sl No 5 above		

To be certified by the Statutory Auditor

Asset Register Summary

Assets after cut-off date: _____

A	Type of Asset (as categorised in Annexure-A1 of this Regulation)		Category 1	Category 2	Category 3	-----	Total
			(in Rs. lakh)				
B	Opening Gross Value of Asset as on 01st April of the FY _____						
	Assets fully Depreciated (90%)	B1					
	Assets Depreciated 70% or more but less than 90%	B2					
	Assets Depreciated less than 70%	B3					
	Total	B=B1+B2+B3					
C	Gross Value of Assets de-commissioned during the FY _____						
	Assets fully Depreciated (90%)	C1					
	Assets Depreciated 70% or more but less than 90%	C2					
	Assets Depreciated less than 70%	C3					
	Total	C=C1+C2+C3					
D	Gross Value of Asset Added during the year	D					
E	Total Gross Value at the end of the FY _____						
	Assets fully Depreciated (90%)	E1=B1 - C1					
	Assets Depreciated 70% or more but less than 90%	E2=B2 - C2					
	Assets Depreciated less than 70%	E3=B3 - C3 + D					
	Total	E=E1+E2+E3					
F	Accumulated Depreciation of the opening Assets						
	Assets Depreciated upto 90%	F1					
	Assets Depreciated 70% or more but less than 90%	F2					
	Assets Depreciated less than 70%	F3					
	Total	F=F1+F2+F3					
G	Adjustment during the FY _____ of Accumulated Depreciation of de-commissioned Assets as on date of de-commissioning						
	Assets fully Depreciated (90%)	G1					
	Assets Depreciated 70% or more but less than 90%	G2					
	Assets Depreciated less than 70%	G3					
	Total	G=G1+G2+G3					
H	Depreciation during the year						
	Assets Depreciated 70% or more but less than 90%	H1					
	Assets Depreciated less than 70%	H2					
	On Asset added during the year	H3					
	Total During the year	H=H1+H2+H3					
I	Closing Balance of Accumulated Depreciation						
	Assets Depreciated upto 90%	I1=F1-G1					
	Assets Depreciated 70% or more but less than 90%	I2=(F2-G2)+H1					
	Assets Depreciated less than 70%	I3=(F3 - G3) + (H2+H3)					
	Total	I=I1+I2+I3					

	Type of Asset (as categorised in Annexure-A1 of this Regulation)		Category 1	Category 2	Category 3	-----	Total
			(in Rs. lakh)				
J	Net Book Value as on last date of the Financial year						
	Assets fully Depreciated (90%)	J1=E1 - I1					
	Assets Depreciated 70% or more but less than 90%	J2=E2 - I2					
	Assets Depreciated less than 70%	J3=E3 - I3					
	Total	J=J1+J2+J3					

Note :

- Intangible Assets, if any, and its amortisation should be shown separately

SI No	Particulars	As on Last Date of the Financial Year (Rs in Lakh)	Depreciation for the year on such Assets (Rs in Lakh)
1	Gross Value of Fixed Asset created out of consumer contribution		
2	Gross Value of Fixed Asset created out of Government grant, etc		
3	Gross Value of Fixed Asset where investment approval is not required in terms of Tariff Regulations		
4	Gross Value of Fixed Assets for which final project cost approval under regulation 2.8.5 has been obtained		
5	Gross Value of Fixed Assets which are partly commissioned or for which final project cost approval under regulation 2.8.5 pending		
	Total GFA (1 to 5)		
6	Investment approval amount considered by the Commission on the assets at SI No 5 above		

To be certified by the Statutory Auditor

..

Place: Kolkata

Dated: 13.03.2023

By order of the Commission,

MAUSUMI GUHA ROY, IAS
Secretary of the Commission

